

**DEPARTMENT SEVEN  
JUDGE TIM P. KAM  
707-207-7307  
TENTATIVE RULINGS SCHEDULED FOR  
WEDNESDAY, MAY 27, 2026**

***The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.***

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

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**WELLS FARGO BANK, N.A. vs. MICHAEL J. COLLETT  
Case No. CL25-08206**

Defendant's Motion to Compel Specific Performance of Fiduciary Duty

**TENTATIVE RULING**

The Parties are to appear.

The Parties are to address whether Plaintiff was properly served with Defendant's motions. The Court has reviewed Defendant's filing on April 9, 2026 attaching various proofs of service. (The Court also notes that at the May 26, 2026 hearing, Plaintiff's Counsel appeared and stated that Plaintiff had not been served with the motions. There was no further discussion on the issue.)

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**EBONEE S. MARTIN; ET AL. vs. RONALD BRAZELL; ET AL.  
Case No. CU23-00315**

Plaintiffs Motion to be Relieved as Counsel

**TENTATIVE RULING**

The Parties are to appear. The Court notes that on April 29, 2026, Defendant filed a motion to compel discovery that is set for July 7, 2026. The Parties are to address what if any impact the motion to compel has on Plaintiff Counsel's motion to withdraw.

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**SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC and EXPRESS SERVICES, INC. d/b/a EXPRESS EMPLOYMENT PROFESSIONALS**  
**Case No. CU23-02346**

Plaintiff's Motion to Compel EXPRESS's Compliance with Discovery Order

TENTATIVE RULING

The Parties are to appear to address the appropriate sample size and special interrogatories 7 and 8.

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**TROY ANDERSON vs. WARDEN OF CALIFORNIA MEDICAL FACILITY**  
**Case No. CU23-02408**

Defendants Demurrer to Plaintiff's Complaint

TENTATIVE RULING

The Parties are to appear.

Plaintiff filed an amends complaint and an opposition to the motion to dismiss. Plaintiff has not filed any proof of service showing that this written submission was served on Defendant. The Parties are to appear to address whether Defendant was served with Plaintiffs filing.

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**CHRISTIAN IBARRA; ET AL. vs. CALIFORNIA DEPARTMENT OF TRANSPORTATION; ET AL.**  
**Case No. CU24-01023**

Demurrer to SAC

TENTATIVE RULING

Defendant AECOM Technical Services, Inc.'s demurrer to Plaintiffs' second amended complaint is sustained without leave to amend.

The court takes judicial notice of the Organizational Record Forms for Defendant AECOM dated December 10, 2008 and September 8, 2023 as the records of a state administrative agency. (Evid. Code § 452(c); *Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1750.)

The requirement of a certificate of merit applies to every action "arising out of the professional negligence ***of a person holding a valid architect's certificate*** ... or ***of a***

***person holding a valid registration as a professional engineer***". (Code Civ. Proc. § 411.35(a), emphases added.) The failure to file a certificate is grounds for a demurrer. (Code Civ. Proc. § 411.35(g).)

A corporation may be a "person holding a valid registration as a professional engineer". (Bus. & Prof. Code § 6738(a); see, e.g., *Curtis Eng'g Corp. v. Superior Court* (2017) 16 Cal.App.5th 542, 545-546 [applying section 411.35 to a corporate provider of engineering services]; *Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 357 [same].) The judicially noticed records establish that Defendant AECOM was a corporate provider of professional engineering services with licensed engineers as owners or officers in charge at all times relevant to Plaintiffs' claims. (RJN, Exhs. A-B.)

Despite Plaintiffs' attempt to argue otherwise, all of their claims against Defendant AECOM arise out of its alleged professional negligence. Plaintiffs explicitly alleged that Defendant "is in the business of providing construction design services" (SAC, ¶ 9) and breached its duty to Plaintiff by negligently "engineering" and "designing" the construction work. (SAC, ¶¶ 35, 45.) More specifically, Plaintiffs allege that Defendant failed to "properly clos[e] off the subject premises to civilian vehicles". (*Ibid.*) Any misconfiguration of the "delineators" that might have improperly permitted unauthorized vehicles into the work area involves engineering judgment and constitutes professional work product. Being able to properly discern issues to address from inspections of the worksite (or to determine whether the manner of inspection is adequate) would also require specialized engineering judgment. Consequently, Plaintiffs' counsel was required to file and serve the certificate pursuant to section 411.35(b) before the date of service of the complaint on any defendant or, if Plaintiffs' counsel was unable to obtain the consultation because a statute of limitations would impair the action, within 60 days after filing the complaint.

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**FELICIA PRATER BROWN vs. COLONIAL CHAPEL VALLEJO**  
**Case No. CU24-07061**

Defendant's Motion to Dismiss

TENTATIVE RULING

Defendant COLONIAL CHAPEL VALLEJO's unopposed motion to dismiss Plaintiff FELICIA PRATER BROWN's complaint against it is granted. On September 9, 2025 this court granted Defendant's motion for judgment on the pleadings against Plaintiff's complaint with leave to amend, permitting Plaintiff to file an amended complaint within thirty days. Plaintiff never filed an amended complaint. The court uses its discretion to dismiss her complaint against Defendant now per Code of Civil Procedure section 581, subdivision (f)(2).

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Department 7 is inviting you to a scheduled ZoomGov meeting.  
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

**Meeting ID: 161 155 4664**

**Passcode: 818575**

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